

Federal Constitution

NOTES

Art. 160

See Art. 162(2).

Clause (2)

a. *Definition of “Aborigine”:*

Inserted by Act 26/1963, section 70, in force from 16-09-1963.

b. *Definition of “Attorney General”:*

Inserted by Act 26/1963, section 5, in force from 16-09-1963.

c. *Definition of “borrow”:*

The words “or by entering into any arrangement requiring the payment before the due date of any taxes, rates, royalties, fees or any other payments or by entering into any agreement whereby the Government has to repay or refund any benefits that it has enjoyed under that agreement” were inserted after the words “grant of annuities” by Act A31, paragraph 8(a), in force from 24-03-1971.

d. *Definition of “casual vacancy”:*

The words “arising in the Senate otherwise than by the expiry of the term of office of a member, or a vacancy” which appeared after the words “means a vacancy” were deleted by Act 31/1965, subsection 2(2), in force from 01-07-1965.

e. *Definition of “Chief Minister” and “Menteri Besar”:*

i. The present definition was inserted by Act 26/1963, section 5, in force from 16-09-1963.

ii. It was amended by Act 59/1966, section 2, in force from 09-08-1965, by the deletion of the words “(and in particular “Chief Minister” includes the Prime Minister in Singapore)” which appeared at the end. The original definition read as follows:

‘ “Chief Minister” includes Menteri Besar;’.

f. *Definition of “Civil List”:*

The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.

g. *Definition of “Commonwealth country”:*

The present definition was substituted by Act 31/1965, subsection 2(2), in force from 01-07-1965. The earlier definition, as it stood at the date of repeal, read as follows:

‘ “Commonwealth country” means the United Kingdom, Canada, Australia, New Zealand, India, Pakistan, Ceylon, Ghana, Nigeria, Cyprus, Sierra Leone, Tanganyika and any other country declared by Act of Parliament to be a Commonwealth country and “part of the Commonwealth” means any Commonwealth country, any colony, protectorate or protected state, or any other territory administered by the Government of any Commonwealth country;’.

“Concurrent List” means the Third List set out in the Ninth Schedule;

“debt” includes any liability in respect of any obligation to repay capital sums by way of annuities and any liability under any guarantee, and “debt charges” shall be construed accordingly;

“elector” means a person who is entitled to vote in an election to the House of Representatives or the Legislative Assembly of a State;

“Enactment”, where the expression occurs in the Eighth Schedule, means a law made by the Legislature of a State;

“Executive Council” means the Cabinet or other body, however called, which in the Government of a State corresponds, whether or not the members of it are Ministers, to the Cabinet of Ministers in the Government of the Federation (and in particular includes the Supreme Council in Sarawak);

“existing law” means any law in operation in the Federation or any part thereof immediately before Merdeka Day;

“federal law” means—

- (a) any existing law relating to a matter with respect to which Parliament has power to make laws, being a law continued in operation under Part XIII; and
- (b) any Act of Parliament;

“Federal List” means the First List set out in the Ninth Schedule;

“federal purposes” includes the purposes of the Federation in connection with matters enumerated in the Concurrent List and with any other matters with respect to which Parliament has power to make laws otherwise than by virtue of Article 76;

“foreign country” does not include any part of the Commonwealth or the Republic of Ireland;

“Governor” (*Repealed*);

“law” includes written law, the common law in so far as it is in operation in the Federation or any part thereof, and any custom or usage having the force of law in the Federation or any part thereof;

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Art. 160—(cont.)

h. *Definition of “Executive Council”:*

Inserted by Act 26/1963, section 5, in force from 16-09-1963.

i. *Definition of “federal law”:* See Art. 162(2).

j. *Definition of “federal purposes”:*

- i. This definition was inserted by Act 25/1963, subsections 5(1) and (3), in force from 31-08-1957, and replaced the original definition which read as follows:

‘ “federal purposes” includes all purposes in connection with matters with respect to which Parliament has power to make laws otherwise than by virtue of Article 76;’.

- ii. The words “of the Constitution” were deleted after the words “Article 76” by Act A31, paragraph 8(b), in force from 24-03-1971.

k. *Definition of “Governor”:*

- i. Inserted by Act 26/1963, section 5, in force from 16-09-1963.

- ii. Act 59/1966, section 2, in force from 09-08-1965, deleted the words “and the Yang di-Pertuan Negara in Singapore” which appeared at the end of the definition and corrected an error in the 1964 Reprint by substituting the words “Yang di-Pertua Negara in Sabah” for the words “Yang di-Pertuan Negara in Sabah.”

- iii. Deleted by Act A354, section 41, in force from 27-08-1976. The earlier definition read as follows:

‘ “Governor” means the Head of State, by whatever style known, in a State not having a Ruler (and in particular includes the Yang di-Pertua Negara in Sabah);’.

“Legislative Assembly” means the representative assembly, however called, in the Legislature of a State (and in particular includes the Council Negri in Sarawak), but except in the Eighth Schedule includes also a Legislative Council, however called;

“Legislative Council” (*Repealed*);

“Legislature”, in relation to a State, means the authority having power under the Constitution of that State to make laws for the State;

“local rates” (*Repealed*);

“Malay” means a person who professes the religion of Islam, habitually speaks the Malay language, conforms to Malay custom and—

(a) was before Merdeka Day born in the Federation or in Singapore or born of parents one of whom was born in the Federation or in Singapore, or is on that day domiciled in the Federation or in Singapore; or

(b) is the issue of such a person;

“member of the administration” means, in relation to the Federation, a person holding office as Minister, Deputy Minister, Parliamentary Secretary or Political Secretary and, in relation to a State, a person holding a corresponding office in the State or holding office as member (other than an official member) of the Executive Council;

“Merdeka Day” means the thirty-first day of August, nineteen hundred and fifty-seven;

“office of profit” means any whole time office in any of the public services, and includes—

(a) the office of any judge of the Federal Court, of the Court of Appeal or of a High Court; and

(b) the office of Auditor General; and

(c) the office of a member of the Election Commission, of a member (other than an *ex officio* member) of a Commission to which Part X applies, or of a member (other than an *ex officio* member) of any corresponding Commission established by the Constitution of a State; and

(d) any other office not specified in Clause (3) of Article 132 which may be declared by Act of Parliament to be an office of profit;

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Art. 160—(cont.)

l. *Definition of “Legislative Assembly”:*

The present definition was inserted by Act 26/1963, section 5, in force from 16-09-1963; and replaced the original definition which read as follows:

‘ “Legislative Assembly”, except in the Seventh and Eighth Schedules, includes a Council of State;’.

m. *Definition of “Legislative Council”:*

This definition was repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

‘ “Legislative Council” means the Legislative Council continued under Article 164;’.

n. *Definition of “Local rates”:*

This definition was inserted by Act 26/1963, section 70, in force from 16-09-1963, and later repealed by Act 59/1966, section 2, in force from 09-08-1965 and read as follows:

‘ “Local rates”, in relation to Singapore, includes the property tax levied for local purposes by the State;’.

o. *Definition of “Malay”:*

i. The words “or in Singapore” which appear after the word “Federation” (in three places) in paragraph (a) were inserted by Act 26/1963, section 70, in force from 16-09-1963.

ii. The words “religion of Islam” substituted for the words “Muslim religion” by Act A354, section 45, in force from 27-08-1976.

p. *Definition of “member of the administration”:*

i. Inserted by Act 26/1963, section 5, in force from 16-09-1963.

ii. Amended by Act 19/1964, subsection 5(2), in force from 16-09-1963, by substituting the words “Assistant Minister, Parliamentary Secretary or Political Secretary” for the words “or Assistant Minister” and by deleting the words “and includes in Singapore political secretaries as well as parliamentary secretaries” which appeared at the end.

iii. The words “Deputy Minister” substituted for the words “Assistant Minister” by Act A31, subsection 10(1), in force from 24-03-1971.

q. *Definition of “office of profit”:*

i. The present definition was inserted by Act 26/1963, section 5, in force from 16-09-1963. The earlier definition, as it stood at the date of repeal, read as follows:

‘ “office of profit” means any whole-time office in any of the public services, and includes the office of the Chief Justice or other judge of the Supreme Court, Auditor General, member of the Election Commission or of any Commission to which Part X applies, and any other office declared by Act of Parliament to be an office of profit;’.

ii. Subsection 18(2) of Act A566, in force from 01-01-1985, provides that a reference to the Federal Court shall now be construed as a reference to the Supreme Court.

iii. The words “Federal Court, of the Court of Appeal” substituted for the words “Supreme Court” by Act A885, paragraph 38(a), in force from 24-06-1994.

“pension rights” includes superannuation rights and provident fund rights;

“public authority” means the Yang di-Pertuan Agong, the Ruler or Yang di-Pertua Negeri of a State, the Federal Government, the Government of a State, a local authority, a statutory authority exercising powers vested in it by federal or State law, any court or tribunal other than the Federal Court, the Court of Appeal and High Courts, or any officer or authority appointed by or acting on behalf of any of those persons, courts, tribunals or authorities;

“remuneration” includes salary or wages, allowances, pension rights, free or subsidized housing, free or subsidized transport, and other privileges capable of being valued in money;

“Rule Committee” (*Repealed*);

“Ruler”—

- (a) in relation to Negeri Sembilan, means the Yang di-Pertuan Besar acting on behalf of himself and the Ruling Chiefs in accordance with the Constitution of that State; and
- (b) in the case of any State, includes except in Clause (2) of Article 181 and the Third and Fifth Schedules, any person who in accordance with the Constitution of that State exercises the functions of the Ruler;

“State” means a State of the Federation;

“State law” means—

- (a) any existing law relating to a matter with respect to which the Legislature of a State has power to make law, being a law continued in operation under Part XIII; and
- (b) a law made by the Legislature of a State;

“State List” means the Second List set out in the Ninth Schedule;

“State purposes” includes, in relation to any State, the purposes of the State in connection with matters enumerated in the Concurrent List and with any other matters with respect to which the Legislature of the State has power to make laws;

“tax” includes an impost or a duty but does not include a rate levied for local purposes or a fee for services rendered;

“the Federation” means the Federation established under the Federation of Malaya Agreement 1957;

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Art. 160—(*cont.*)

r. *Definition of “public authority”:*

- i. The words “Federal Court and High Courts” substituted for the words “Supreme Court” by Act 26/1963, section 70, in force from 16-09-1963.
- ii. The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.
- iii. Subsequently subsection 18(2) of Act A566, in force from 01-01-1985, provides that a reference to the Federal Court shall be construed as a reference to the Supreme Court.
- iv. The words “Federal Court, the Court of Appeal” substituted for the words “Supreme Court” by Act A885, paragraph 38(*b*), in force from 24-06-1994.

s. *Definition of “Rule Committee”:*

This definition was repealed by Act 26/1963, section 70, in force from 16-09-1963 and read as follows:

‘ “Rule Committee” means the Rule Committee or other authority having power under written law to make rules or orders regulating the practice and procedure of the Supreme Court;’.

t. *Definition of “State purposes”:*

Inserted by Act 25/1963, subsections 5(1) and (3), in force from 31-08-1957.

“written law” includes this Constitution and the Constitution of any State;

“Yang di-Pertua Negeri” means the Head of State in a State not having a Ruler.

(3) Unless the context otherwise requires, any reference in this Constitution to a specified Part, Article or Schedule is a reference to that Part or Article of, or that Schedule to, this Constitution, any reference to a specified chapter, clause, section or paragraph is a reference to that chapter of the Part, that clause of the Article, that section of the Schedule, or that paragraph of the clause or section, in which the reference occurs; and any reference to a group of Articles, sections or divisions of Articles or sections shall be construed as including both the first and the last member of the group referred to.

(4) Where under this Constitution a person is required to take and subscribe an oath he shall be permitted, if he so desires, to comply with that requirement by making and subscribing an affirmation.

(5) References in this Constitution to the Federation and its States and to the territories of the Federation or any of its States, and to any officer holding office under the Federation or any authority or body in or for the Federation shall be construed—

(a) in relation to any time after the coming into operation of the Federation of Malaya Agreement 1948, and before Merdeka Day, as references to the Federation established under that Agreement, and the States and Settlements comprising it and to the territories of that Federation or any of the States and Settlements comprising it, and to the corresponding officer holding office thereunder or the corresponding authority or body in or for that Federation;

(b) in relation to any time before the coming into operation of the said Agreement (so far as the context admits) as references to such of the countries, territories, offices, authorities or bodies for the construction of references to which provision was made by Clause 135(2) of the said Agreement, as may be appropriate.

(6) References in this Constitution to any period shall be construed, so far as the context admits, as including references to a period beginning before Merdeka Day.

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Art. 160—(*cont.*)

u. *Definition of “Yang di-Pertua Negeri”:*

Inserted by Act A354, section 41, in force from 27-08-1976.

(7) References in this Constitution to the Federation of Malaya Agreement 1948, shall be construed, except where the context otherwise requires, as references to that Agreement as in force immediately before Merdeka Day.

Reprint of the Constitution

160A. The authority appointed under federal law for the purpose of revising laws may, with consent of the Yang di-Pertuan Agong, authorize the printing of copies of this Constitution, including all amendments in force at the date of such authorization; and any copy of this Constitution so printed shall be deemed for all purposes to be a true and correct copy of the Federal Constitution.

Authoritative text

160B. Where this Constitution has been translated into the national language, the Yang di-Pertuan Agong may prescribe such national language text to be authoritative, and thereafter if there is any conflict or discrepancy between such national language text and the English language text of this Constitution, the national language text shall prevail over the English language text.

PART XIIA

ADDITIONAL PROTECTIONS FOR STATES OF SABAH AND SARAWAK

Use of English and of native languages in States of Sabah and Sarawak

161. (1) No Act of Parliament terminating or restricting the use of the English language for any of the purposes mentioned in Clauses (2) to (5) of Article 152 shall come into operation as regards the use of the English language in any case mentioned in Clause (2) of this Article until ten years after Malaysia Day.

(2) Clause (1) applies—

- (a) to the use of the English language in either House of Parliament by a member for or from the State of Sabah or Sarawak; and
- (b) to the use of the English language for proceedings in the High Court in Sabah and Sarawak or in a subordinate court in the State of Sabah or Sarawak, or for such